

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST**  
**REPUBLIC OF SRI LANKA**

In the matter of an appeal under and in terms of  
Section 331 (1) of the Code of Criminal  
Procedure Act No. 15 of 1979 read with Article  
138(1) of the Constitution of the Democratic  
Socialist Republic of Sri Lanka and Section 11 of  
the Special Provisions Act No. 19 of 1990.

The Democratic Socialist Republic of Sri Lanka

**Complainant**

Court of Appeal Case No.:  
**CA/HCC/ 0039/2025**

-Vs-

Mohamed Niyas Mohamed Kuthupdeen

High Court Colombo Case No.:  
**HC/592/2018**

**Accused**

**AND NOW BETWEEN**

Mohamed Niyas Mohamed Kuthupdeen

**Accused-Appellant**

-Vs-

Hon. Attorney General  
Attorney General's Department  
Colombo 12.

**Complainant- Respondent**

Before : **P. Kumaratnam, J.**  
**Pradeep Hettiarachchi, J.**

Counsel : Neranja Jayasinghe with Randunu Heellage and Pravindika  
Kularathne for the Accused-Appellant.  
: Azard Navavi, ASG for the Respondent.

Argued on : 18-06-2026

Decided on : 21-09-2026

**Pradeep Hettiarachchi, J**

**Judgment**

1. This appeal arises from the judgment dated 04.01.2024, delivered by the Learned High Court Judge of Colombo. The Accused-Appellant (hereinafter referred to as “the Appellant”) was indicted before the High Court of Colombo in case No. HC 592/2018 on the following counts:
  - a. On or about 28.07.2016, within the jurisdiction of the High Court of Colombo, the Accused was found in possession of 8.88 grams of Heroin without the authority or a license as permitted by the Director in terms of Chapter 5 of the Poisons, Opium and Dangerous Drugs Ordinance as amended by Act No. 41 of 2022, an offence punishable under Section 54A (d) of the said Ordinance;
  - b. At the same time, during the same transaction, the Accused, by trafficking 8.88 grams of Heroin, committed an offence punishable under Section 54A (b) of the Poisons, Opium and Dangerous Drugs Ordinance as amended by Act No. 41 of 2022.
2. At the trial, two witnesses testified for the prosecution. Since both parties admitted the Government Analyst’s Report under Section 420 of the Code of Criminal Procedure Act, it was marked as P10 in evidence through the High Court Interpreter. The Appellant subsequently made a dock statement.

3. At the conclusion of the trial, the learned Trial Judge found the Appellant guilty of both counts. The Appellant was accordingly convicted and sentenced to life imprisonment. Aggrieved by the said conviction and sentence, the Appellant has preferred the present appeal on the following grounds;
  - a. The learned High Court Judge had failed to take into consideration the serious infirmities of the prosecution case; and
  - b. The learned High Court Judge had failed to evaluate the dock statement and adduce reasons for his conclusion to reject the dock statement.
4. The first ground of appeal advanced by the Appellant was that the learned Trial Judge failed to take into consideration the serious infirmities of the prosecution case. I shall now consider whether such a contention is borne out by the judgment, in light of the evidence adduced by the prosecution.
5. PW1, Wimalasena Lionel, was the first witness to testify on behalf of the prosecution. At the material time, he was serving as an Inspector of Police attached to the Police Narcotics Bureau. According to his evidence, at approximately 14.45 hours, he received information from a private informant that a person known as 'Niyas,' residing at Kajeema Watta, Ferguson Road, was engaged in the trafficking of Heroin and would be proceeding towards the vicinity of the Weligoda Mosque carrying Heroin.
6. PW1 testified that, upon receipt of this information, he informed the Officer-in-Charge, following which the officers of the Police Narcotic Bureau left the police station at about 15.30 hours and proceeded towards Stadium Park, the car park near the Sugathadasa Stadium. According to PW1, the informant met in the said car park. They travelled in police jeep No. WPKP 5795, driven by PS Udayakumara 18314.
7. PW1 further testified that, prior to leaving the police station, he made the relevant out entry in his notes at approximately 15.15 hours. Thereafter, they arrived at Stadium Park at about 15.55 hours and met the informant at about 16.20 hours. According to PW1. The informant informed them that the Appellant would be arriving in the vicinity of the mosque between 5.00 p.m. and 5.30 p.m.

8. Thereafter, PW1 and PS Sanjeewa 60728 (PW4), accompanied by the informant, proceeded towards the mosque and sat on a small wall situated near a playground in the vicinity of the mosque. The other members of the police team were instructed to remain near the Madampitiya Cemetery.
9. According to the witness, while they were seated there, the informant identified the Appellant, who was approaching them accompanied by another person wearing a grey-coloured striped T-shirt and grey-coloured denim trousers. Then, PW1 and PW4 proceeded towards the Appellant and conducted a search. During the search, a quantity of Heroin was found concealed in a pink-coloured grocery bag kept in the right-side pocket of the Appellant's trousers. PW1 thereafter arrested the Appellant at about 17.40 hours, after informing him of the offence for which he was being arrested.
10. PW4 also proceeded to arrest the other person who had accompanied the Appellant. However, nothing incriminating was found in his possession; thereafter, PW1 and PW4, together with the Appellant and the other person who had been arrested, proceeded in the said police jeep to the vicinity of the Madampitiya Cemetery, where an inquiry was conducted. During the course of the inquiry, it was revealed that the Heroin had allegedly been obtained by the Appellant from his brother-in-law, who was residing in Wattala. Prior to proceeding from the Madampitiya Cemetery towards Wattala, PW1 handed over the parcel containing the Heroin and the other items recovered from the Appellant to PW4. The police team thereafter proceeded to Wattala with the Appellant and took his brother-in-law into custody.
11. Then, the police team subsequently returned to the Police Narcotics Bureau at about 21.15 hours. Thereafter, the parcel containing the Heroin was sealed and handed over to PC Keerthi on 29.07.2016 at 7.15 hours. In the meantime, the production had been kept in the private locker of PW1 until it was handed over to the receiving officer.
12. The next witness called on behalf of the prosecution was PW14, Keerthi Perera. According to his evidence, he received the production relating to the Appellant from PW1 on 29.07.2016 at 7.17 hours. Further, he testified that he subsequently handed over the said production to the Government Analyst's Department on 01.08.2016 at 10.40 hours.

13. The next material witness called by the prosecution was PW4, Prasad Sanjeeewa. According to his testimony, upon the instructions of PW1, he accompanied the police team to the location for the purpose of conducting the raid. PW4 testified that, after arriving at the said ground, they remained there waiting for approximately one hour. However, this evidence is materially inconsistent with the evidence of PW1 as to the period during which they remained in the vicinity of the ground awaiting the Appellant.

“ප්‍ර: මහත්මියලා ඔය ස්ථානයේ ඔය තොරතුරුකරුන් එක්ක කොච්චර වෙලාවක් හිටියද ගිහිල්ල?”

උ: සාමාන්‍යයෙන් පැයකට අසන්න කාලයක් ස්වාමිනි.” (at vide pages 203-204 of the Appeal Brief)

14. Another inconsistency between the evidence of PW1 and PW4 relates to the location of the premises where the alleged raid was conducted. PW1 testified that the car park known as ‘Stadium Park’ was situated behind the Sugathadasa Stadium. In contrast, PW4, when questioned regarding the location to which they left for the raid, stated that it was situated in the Keththarama area. Thus, the evidence of PW1 and PW4 is inconsistent as to the precise location of the said car park where the police team allegedly proceeded prior to the raid.

“ප්‍ර: ඔය මහත්මිය ස්ටේඩියම් පාර්ක් කියල හඳුන්වන පාර්ක් එක මහත්මිය මන්ද්‍රවය නාශක කාර්යාංශයේ ඉඳල කොච්චර වගේ දුරකින්ද තිබෙන්නේ?”

උ: සාමාන්‍ය දුර ප්‍රමාණයක් තිබෙනවා. කෙත්තාරාම ප්‍රදේශයේ පිහිටලා තිබෙන්නේ.” (at vide page 196 of the Appeal Brief)

15. There is further discrepancy between the evidence of PW1 and PW4 regarding the time at which the Appellant was taken into custody. PW1 testified that the Appellant was taken into custody at 17.40 hours, whereas PW4 testified that the Appellant was taken into custody at 14.40 hours. This discrepancy concerns a material aspect of the prosecution case as to the time at which the Appellant was allegedly apprehended.

“ප්‍ර: එතොකොට දැන් මහත්මිය ඔය තොරතුරේ තොරතුරුකරු කියපු ආකාරයට මහත්මිය හඳුනාගෙන හෙරොයින් සන්නකයේ තිබුණු පුද්ගලයා සම්බන්ධව මොකද කලේ? හෙරොයින් සොයා ගත්තට පස්සේ?”

උ: අංක 233/142/බී හේනමුල්ල කදවුර, මාදම්පිටිය පර, කොළඹ 15 ලිපිනයේ පදිංචි මොහොමඩ් නියාස් මොහොමඩ් උදුර්දින් යන අය හෙරොයින් ලග තබා ගැනීමේ වරද කියා දීලා පැය 14.40 ට පමණ ලයනල් මහතා විසින් අත්අඩංගුවට ගෙන ඔහුට අත් විලංගු යෙදීමක් සිදු කලා ස්ථාමිනි.” (at vide pages 207-208 of the Appeal Brief)

16. A further inconsistency arises between the evidence of PW1 and PW4 regarding the time at which they left the Police Narcotics Bureau. PW1 testified that he made the relevant out entry at 15.15 hours and left the Police Narcotics Bureau at about 15.30 hours. In contrast, PW4 testified that he reported to the Police Narcotics Bureau at about 15.50 hours. This evidence is inconsistent with the prosecution version as to the time at which the police team commenced its journey to the alleged raid.

“ප්‍ර: පැය කීයටද මහත්මයාගේ පිටවීමේ සටහන යෙදුවේ?

උ: පැය 15.15 ට.

ප්‍ර: මහත්මයා පැය 15.15 ට පිටවීමේ සටහන යොදල සත්‍ය වශයෙන්ම මත්ද්‍රව්‍ය නාශක කාර්යාංශ භූමියෙන් පිටත් වූනේ කීයටද?

උ: පැය 15.15 ට සටහන් යොදල පහල ගොස් යට ගිය. ඉන් අනතුරුව රථය පරීක්ෂ කිරීමෙන් පසුව පැය 15.30 ට පහල ගොස් පිටව ගිය.” (at vide page 82-83 of the Appeal Brief)

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“ප්‍ර: එතොකොට මහත්මයා ලයනල් මහත්මයා විසින් මහත්මයාට ලබාදීපු නියෝගයට අනුව මහත්මයා මොකක්ද කරපු ක්‍රියාව?

උ: ඒ අනුව මා සිවිල් ඇඳුමින් සැරසී වැටලීමකට යාම සඳහා චෝදනාගාරයට පැය 15.50 පමණ වාර්තා කලා.” (at vide page 193 of the Appeal Brief)

17. It should further be noted that, according to the evidence of PW1 and PW4, the informant was present with them at the time of the alleged raid. However, the presence of the informant at the scene of the alleged raid is itself questionable, particularly in view of the circumstances in which the raid was said to have been conducted.

“ප්‍ර: ඒ අවස්ථාව වන විට ඔය තොරතුරුකරු කොහෙද හිටියේ මහත්මයා?

උ: අපිත් සමගයි රැඳී සිටියේ.” (at vide page 89 of the Appeal Brief)

18. These unexplained omissions and inconsistencies in the evidence of PW1 and PW4 raise serious doubts regarding the integrity of the investigation. The cumulative effect of the aforementioned contradictions in the evidence of PW1 and PW4 substantially undermines the credibility of the prosecution case. Their inconsistent statements regarding the place at which they met the informant, and the time of the Appellant's arrest, create serious doubt as to the reliability of the prosecution version.
19. These are not minor discrepancies but go to the root of the prosecution's case, particularly in relation to the time and place of the arrest. In a case of this nature, where the prosecution's case rests predominantly on the evidence of police officers, it is imperative that such evidence be clear, consistent, and free from material contradictions. The failure to meet this standard renders it unsafe to place reliance on the testimonies of PW1 and PW4, thereby entitling the Appellant to the benefit of a reasonable doubt.
20. Owing to the contradictory nature of the prosecution evidence, a reasonable doubt arises regarding the time and place of the arrest, and the manner in which the raid was allegedly conducted. Moreover, these inconsistencies directly undermine the credibility of PW1 and PW4, as the discrepancies in their evidence have not been sufficiently explained and are difficult to justify. The following authorities illustrate the consequences of the prosecution's failure to establish the charges beyond a reasonable doubt.
21. In ***Kalinga Premathilake vs. The Director General of the Commission to Investigate Allegations of Bribery or Corruption, SC Appeal No. 99/2007***, decided on 30-07-2009, it was held,

*“What needs consideration now is when the evidence led for the prosecution in this case is closely scrutinized, whether it would be satisfied that the prosecution had discharged the burden of proving the case beyond a reasonable doubt. If not, the appellant is liable to be acquitted of the charges. The prosecution must stand or fall on its own legs, and it cannot derive any strength from the weaknesses in the defence, and when the guilt of the accused is not established beyond a reasonable*

*doubt, he is liable to be acquitted as a matter of right and not as a matter of grace or favour.”*

22. In **Narendra Kumar vs. State (NCT of Delhi), AIR 2012 SC 2281**, the Indian Supreme Court held:

*“Prosecution case has to stand on its own legs and cannot take support from the weaknesses of the case of defence. However great the suspicion against the accused and however strong the moral belief and conviction of the Court, unless the offence of the accused is established beyond a reasonable doubt on the basis of legal evidence and material on the record, he cannot be convicted for an offence. There is an initial presumption of innocence of the accused, and the prosecution has to bring home the offence against the accused by reliable evidence. The accused is entitled to the benefit of every reasonable doubt.*

23. It is also desirable to emphasize that the officers, when conducting a raid of this nature, are required to make notes on every important event and are also entitled to peruse their notes in order to refresh their memory when testifying. Hence, where material contradictions are present in their testimony, the Court cannot lightly disregard such inconsistencies and proceed to convict the Appellant.

24. Unfortunately, the aforesaid infirmities, together with the material inconsistencies in the prosecution evidence, appear to have escaped the attention of the learned Trial Judge.

*“එසේම වුදින පැමිණීමට පෙර වැලිගොඩ පල්ලිය ඉදිරිපිට පැය හාගයක පමණ කාලයක් සිටි බව පැ. සා. 1 පවසන කරුණත්, පැ. සා. 04 පයක පමණ කාලයක් සිටියේ යන කරුණත් නඩුවේ හරයට බලපාන පරස්පරතාවයක් ලෙස සැලකීමට හැකියාවක් නැත.*

*මක්නිසාදත් දෙදෙනාම අසන්න වෙලාවක් පවසන අතර එය නිශ්චිත නොවන හෙයිනි. එසේම මෙම කාලපරාසය ආසන්න වශයෙන් පැය හාගයක් වන අතර කිසිවෙකු ඔරලෝසුවේ නිශ්චිත වෙලාවක් සඳහන් කර නොමැති හෙයින් මෙය වැදගත් පරස්පරතාවයක් නොවේ.” (at vide page 376 of the Appeal Brief)*

25. Further, it was contended on behalf of the Appellant that the learned High Court Judge failed to properly evaluate the dock statement of the Appellant. However, I shall not

consider this ground of appeal, as the above-mentioned ground of appeal is sufficient to dispose of this appeal.

26. For the reasons set out above, the said infirmities discernible in the prosecution's evidence render the conviction unsafe and untenable.

27. Accordingly, the conviction and sentence dated are hereby set aside. The Appellant is acquitted of all charges. The appeal is allowed.

**Judge of the Court of Appeal**

**P. Kumararatnam, J.**

I agree

**Judge of the Court of Appeal**